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HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 302

AN ACT TO AMEND TITLE 29 OF THE DELAWARE CODE RELATING TO LANGUAGE ACCESS TO
GOVERNMENT WEBSITES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Chapter 106, Title 29 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 10608. State government websites.

4 (a) For purposes of this section:

5 (1) “Limited English proficiency” means not using English as a primary language and having a limited ability
6 to read, write, speak, or understand English.

7 (2) “Machine translation” means the use of automated software that translates text without human
8 involvement.

9 (3) “Program” means all of the operations of a State department, State agency, or any other instrumentality of
10 the State.

11 (b)(1) Except as provided by subsection (c) of this section, all State department, agency, and program websites that
12 are available to and used by members of the general public must be available in any language that meets the following
13 conditions:

14 a. Is spoken by a limited English proficient population that constitutes at least .5% of the overall
15 population within the State, as measured by the most recent United States Census.

16 b. Can be translated free of charge.

17 (2) If machine translation services are used to carry out the provisions of this subsection, the translated
18 website must post conspicuously on its website a disclaimer that the State department, agency, or program:

19 a. Does not guarantee the accuracy or reliability of the translation.

20 b. Is not liable for any loss or damage arising out of the use of or reliance on the translated content.

21 (c) A State department, agency, or program is not required to provide translated websites if any of the following
22 apply:

23 (1) The State department, agency, or program determines that an inaccurate translation of the content could
24 lead to a denial of services or benefits.

25 (2) The content cannot be translated due to the limitations of machine translation software, including in PDF
26 format, images, and videos.

27 (d)(1) The Government Information Center must establish minimum standards to which translated websites
28 required under this section must conform.

29 (2) The minimum standards established by paragraph (d)(1) of this section must include a standard regarding
30 the prominent placement of website links on the English version of a website that direct the user to each required
31 translated version of the website.

32 Section 2. This Act will be effective immediately and must be implemented as follows:

33 (1) The Government Information Center must establish minimum standards for translated websites, as
34 required by Section 1 of this Act, within 6 months of this Act's enactment into law.

35 (2) The rest of this Act must be implemented no later than 2 years after its enactment into law.

SYNOPSIS

This Act requires that all State government websites are accessible in any language spoken by at least .5% of the overall population of Delaware. A link to the translated website must be prominently placed on each English version of the website. State websites may use machine translation services to translate websites so long as the website provides a disclaimer as to the accuracy of the text.